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Q1. The DPSP provides a roadmap for a welfare state; but their non-justiciable nature often limits their implementation. In this context, critically examine the conflict between DPSP and FR, citing landmark judgement and constitutional amendment. 38 marks.

DPSP is given in Part IV of Indian constitution consisting article (37-51) which gives directives to all the present and future government to make policies and legislation through incorporating these principles.

DPSP carries ideal aspiration but after independence, there is inadequate social and economic development and due to lack of resources, many provisions of DPSP can't be legally enforced and it was kept as non-justiciable in nature.

RELATION BETWEEN FR AND DPSP

FR	DPSP
1. Rights 2. Enforceable and justiciable 3. Individual centric 4. Aimed at creating political democracy	1. In the form of directives to the govt. 2. Non-justiciable 3. Group centric 4. Socio-economic democracy

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FR and DPSP

CONVERGENCE

1. FR and DPSP both helps to achieve justice. FR

helps in achieving political justice whereas DPSP serve socio-economic justice.

EDUCATION

2. Article 21(a) gives every person right to elementary education whereas article 41 provides for right to education and at the same time article

45 provides for early childhood care and education for children below 6 years.

3. WOMEN AND CHILD DEVELOPMENT

Article 15(3) empower state to make special provision for women and children,

article 24 - prohibits child labour whereas 39(d) provides equal pay for equal work for men and

CONFLICT

1. CHAMPAKAM DORAIRAJAN CASE

FR would prevail over DPSP and DPSP would run as subsidiary to the FR.

2. GOLAKNATH CASE

Parliament can't abridge the FR which are sacrosanct in the nature i.e FR can't be amended to implement DPSP.

3. 94th and 25th CAA

It provides that parliament has power to abridge or take away any rights by enacting constitutional amendment act

No law which seeks to implement the provision of article 39(b) and (c) of DPSP shall be

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women, article 39 (f) provides healthy development of children and article 42 provides maternity benefits.

4.

EQUALITY

FR - Article 14-18

DPSP - Article 39 (d) that states equal pay for equal work for men and women and article 44 which talks about uniform civil code.

declared void on the ground that it contravenes article 14, 19, and 31

42nd CAA

Parliament gave primacy of all the DPSP over FR. However this extension was declared unconstitutional in Minesweeper Mill case (1980)

Thus, it must be concluded that one should try to establish harmony between FR and DPSP despite the differences because harmony is part of the basic structure and as rightly held by Supreme Court in I.R. Coelho case that it is the responsibility of the govt. to adopt middle path between individual liberty i.e. FR and public good i.e. DPSP.

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2. With globalization, economic liberalisation, and emerging social challenges, do you think the Directive principles remain relevant today? Critically assess their contemporary significance and suggest how they can be made more effective in the modern policy framework. 38 marks

DPSP is enshrined in Part IV of the constitution. It guarantees social and economic democracy and tries to establish a welfare state. DPSP directs government to incorporate its directive principles while framing its policies and legislation.

RELEVANCE OF DPSP IN THE ERA OF GLOBALIZATION, ECONOMIC LIBERALISATION AND SOCIAL CHALLENGE

GLOBALIZATION

Impact of Globalisation

1. Exploitation of workers

Globalisation can exploit workers by moving jobs to countries with lower labour cost.

Relevance of DPSP

1. Articles 38, 39, 41, 42 and 43 aim to secure a social order promoting welfare, ensure adequate means of livelihood and provide decent standard of living.

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LIBERALISATION

Impact

1. Income inequality
With liberalisation India inclined towards capitalism through socialism and it increases income inequality.

2. Human rights
liberalisation and capitalism has ~~scarce~~ ^{meagre} regards to the human work environment, wages and labour

Relevance

1. Article 38 of DPSP states that it is the state's responsibility to promote welfare and minimise inequality.

2. DPSP are relevant to provide a humane work, equal wages for equal work 39(d) and increasing quality of standard of living.

SOCIAL CHALLENGES

Impact

1. Impaired human capital
Modern industries seek best talent and most productive labour from the market having required skills and education.

2. Rising environment issue lead to distressed migration

Rising globalisation there is adverse impact on our climate change which increases migration.

Relevance of DPSP

1. DPSP puts an obligation on the part of the government to provide free, compulsory and quality education up to primary level and public health. → Article 45.

2. DPSP oblige government through article 48 which says to protect and improve the environment and to safeguard the forests and wildlife.

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SIGNIFICANCE OF DPSP

1. CREATE A WELFARE STATE

DPSPs aim to create a just society by promoting social welfare, economic justice and equity.

Supporting article :- Article 38, land reform laws

2. PROMOTE SOCIO-ECONOMIC JUSTICE

Unlike FR which protect political justice DPSP promote socio-economic justice

3. PROGRESSIVE MEASURES

Includes provision for the promotion of educational opportunities, public health and protection of the interest of marginalised section of society such as SCs, STs and backward class.

E.g :- Article 45, 46, minimum wages act 1948

4. CONSTITUTIONAL GUIDANCE

Though not legally enforceable, DPSP provides constitutional guidance to the government in formulating laws and policies.

E.g :- Article 37

5. OTHER SIGNIFICANCES

→ Emphasize on separation of power. [E.g - Ar 50]

→ Environment protection. [E.g. Article 48A],
wildlife protection act 1972.

→ Guides to maintain international peace

[E.g - Article 51]

CRITICISM

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1. LACK OF LEGAL ENFORCEABILITY

DPSP are non-judicial, meaning they cannot be enforced by the courts -

2. CONSERVATIVE NATURE

Sir M. J. J. J. called it, pious declaration and opined that the directives were deemed to be suitable in India in the middle 20th century.

3. LACK OF LOGICAL ARRANGEMENT

DPSPs are not logically arranged and lack of consistent philosophy. The mixing of different provisions lacks a systematic approach.

4. LACK OF ACCOUNTABILITY

Since DPSP are non-binding, there is a lack of accountability in ensuring compliance. This allows government to neglect their obligation.

EFFECTIVENESS OF DPSP IN MODERN DAY POLICY FRAMEWORK

1. PRIORITIZE SOCIAL AND ECONOMIC NEEDS

Govt. should prioritize policies that address income inequality, promote social mobility and ensure equal opportunities for

2. PROTECTING AND FORMULATING STRINGENT LAWS FOR LABOUR RIGHTS

Protecting worker's rights, ensuring fair wages and promoting safe working condition.

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3. PROMOTE SUSTAINABLE DEVELOPMENT PRACTISES

By promoting environmental protection activities through incentivising and polluters pay policy will promote ecological balance and resource conservation.

4. INTEGRATE DPSPs INTO POLICY MAKING

Develop policy framework that explicitly incorporate DPSPs, by inter-ministerial coordination to ensure a holistic approach to implementing DPSPs.

5. FOSTER PUBLIC AWARENESS AND ENGAGEMENT

Promote public awareness about DPSPs and their importance through educational campaigns and by engaging civil society participant organization in policy formulation.

Thus, DPSP still holds relevance in this globalised world for a better informed, productive, equity based and sustainable development. There is an increasing realisation that these directives act as a bedrock for good governance and socio-economic justice in the society.